

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Case No.: 22-23

MARINE TRANSPORT LOGISTICS, INC

Complainant

vs.

CMA-CGM (America), LLC

Respondent

**COMPLAINANT'S RESPONSE TO
RESPONDENT'S MOTION FOR
RECONSIDERATION &
COMPLAINANT'S STATUS UPDATE**

On page two of CMA's motion that they filed on February 14, 2024, it say: "CMA has been working diligently to identify and collect the information requested by Complainant's Request for Documents 6, as amended by the Order."

Such Order was issued on January 31, 2024. It is now February 26, 2024, yet not a single document responsive to MTL's request at issue has been produced. CMA stated in footnote #2 on page 2 of their motion: "CMA will of course make these productions on a rolling basis in order to complete them as soon as possible." I even consented to CMA producing these documents later than they should have been and said that I would not raise an objection as to untimely production as long as such production is not too close to the deadline to file the brief, yet I did not receive a single document. Why should production be limited further? The Court already ruled that it should be limited to just one year (2022), and we accepted that. If CMA is now saying that there are hundreds of thousands of pages relating to complaints about demurrage/detention/storage in just one year, then that is not the basis to not produce any documents and is highly concerning beyond just what MTL went through. Without seeing any of the documents on this issue, it is impossible for me to argue whether further production should

be limited. These documents are directly related to the central allegation in this Amended Complaint.

If the discovery period can be extended under the FMC rules, then, of course, I will consent because CMA did not produce what they were supposed to (and were ordered to on January 31, 2024) when I first made the request in MTL's request for documents a year ago on February 6, 2023.

Additionally, CMA has failed to respond to my post deposition requests and notice of deficiencies that were served on CMA on January 26, 2024 (a copy of such follows the end of this response). If the discovery period is extended, this is something that also needs to be addressed. For example, on page 5 of their motion, CMA says: "Complainant does not identify with any specificity the alleged unreasonable practice by CMA..."

As one example, which is addressed in paragraph 3 of the referenced notice of deficiencies, involving communications with CMA's Ms. Muraya (who incidentally CMA said they could not locate when I served the notice of deposition for her) for which CMA did not produce all available communications, CMA, before putting one of the subject containers on its final destination to Bremerhaven, has delayed loading such and other subject containers in the Port of Constanta for months, without notifying anybody as to the reason for such delays and tried to collect demurrage/storage for these delays caused solely by CMA, without timely providing invoices for such charges or not providing invoices at all. This is just one of the examples that I believe shows that CMA's practice discourages prompt movement of cargo, and this is the scenario concerning five subject containers that were originally destined for Ukraine.

As to CIS Development, as I stated in my filing in the federal matter, even though I produced responsive documents and CIS appeared for a deposition in a timely manner on

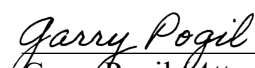
February 16, CMA refused to withdraw their petition to enforce the subpoena. What are they still trying to enforce in the District Court? I believe that instead of taking the time to file all these frivolous motions, they could have produced at least some documents in response that they were ordered to produce.

As the Commission stated in its Order Affirming Denial of Motion on October 30, 2023, “Respondent caused substantial delay and additional litigation expense to the Complainant which, in my view, may have been based on frivolous arguments. I believe the Commission should consider whether the arguments advanced by the Respondent warrant sanctions.”

I am not asking for sanctions, but I believe CMA should have begun production of what they were ordered to produce in these 26 days, at a minimum, copies of complaints that were made to CMA concerning demurrage/detention/storage in a single year of 2022 and the outcome of such. If the Court will not be extending the discovery, then CMA should be ordered to produce what they can immediately as the Complainant’s brief is due on March 15, 2024.

February 26, 2024

Respectfully Submitted,



Garry Pogil (*Attorney for the Complainant*)

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To: Rebecca Fenneman, Esq

Re: MTL v. CMA, Docket No. 22-23
Notice of Deficiencies and Supplemental Requests

1. Mr. Majors testified during his deposition that he attended a training with respect to demurrage/detention at CMA, so please provide copies of any and all training materials from that or any other training that CMA has ever conducted with respect to demurrage/detention.
2. CMA did not produce any documents with respect to the disputes as contained in allegations 29-39 in the Verified Amended Complaint. There is evidence that such documents exist based on MTL's production of documents on January 26, 2024, so please provide all non-privileged internal communications and documents with respect to such disputes that MTL has filed with CMA.
3. With respect to CMA's document #965, Oksana Muraya from CMA is requesting payment for charges occurred in Constanta, so please provide copies of all invoices with respect to such charges that CMA was trying to collect with respect to the subject containers that idled in the Port of Constanta. Please also provide all communications concerning this request, not just one email from Ms. Muraya.

Dated: January 26, 2024


Garry Pogil, Esq